

1.

CASE #	CASE NAME	HEARING NAME
CVPS2404533	COLTON VS WYNDHAM DESTINATIONS, INC.	MOTION TO COMPEL INITIAL RESPONSES OF PLAINTIFF TO REQUESTS FOR PRODUCTION OF DOCUMENTS AND REQUEST FOR SANCTIONS PURSUANT TO CCP SEC. 2030.290(C) AGAINST PLAINTIFF KRISTINE COLTON BY WORLDMARK, THE CLUB

Tentative Ruling: No tentative ruling. Hearing is continued to consolidate all future hearings. The Motions to Compel currently set for 8.26.26, 9.01.26, 9.03.26, 9.09.26 and 9.11.26 are all continued to 9.22.26 at 8:30 a.m. Any oppositions to the motions shall be filed by 9.09.26. Any reply to be filed by 9.15.26.

2.

CASE #	CASE NAME	HEARING NAME
CVPS2503181	CARREJO, BY AND THROUGH HIS SUCCESSORS IN INTEREST ROSALINDA FRAUSTO VS DESERT REGIONAL MEDICAL CENTER	MOTION TO SET ASIDE DEFAULT FOR FAILURE TO TIMELY RESPOND TO REQUEST FOR ADMISSIONS ON 2ND AMENDED COMPLAINT OF FRANCISCO CARREJO, BY AND THROUGH HIS SUCCESSORS IN INTEREST ROSALINDA FRAUSTO BY DESERT REGIONAL MEDICAL CENTER

Tentative Ruling: No tentative ruling. Hearing continued to 9.16.26.

3.

CASE #	CASE NAME	HEARING NAME
CVPS2504070	LIBERTAD VS COUNTY OF RIVERSIDE	DEMURRER ON 2ND AMENDED COMPLAINT OF URIMARE LIBERTAD

Tentative Ruling: A general demurrer lies where the pleading does not state facts sufficient to constitute a cause of action. (C.C.P. § 430.10(e).) In evaluating a demurrer, the court gives the pleading a reasonable interpretation by reading it as a whole and all of its parts in their context. (*Moore v. Regents of University of California* (1990) 51 Cal.3d 120, 125.) The court assumes the truth of all material facts which have been properly pleaded, of facts which may be inferred from those expressly pleaded, and of any material facts of which judicial notice has been requested and may be taken. (*Crowley v. Katleman* (1994) 8 Cal.4th 666, 672.) However, a demurrer does not admit contentions, deductions or conclusions of fact or law. (*Daar v. Yellow Cab Company* (1967) 67 Cal.2d 695, 713.) If the complaint fails to state a cause of action, the court must grant the plaintiff leave to amend if there is a reasonable possibility that the defect can be cured by amendment. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.)

A special demurrer lies where a pleading is uncertain, ambiguous and unintelligible. (CCP § 430.10(f).) Demurrers for uncertainty, however, are typically sustained only where the defendant cannot reasonably determine what issues must be

admitted or denied, or what claims are directed against him. (*Khoury v. Maly's of California, Inc.* (1993) 14 Cal.App.4th 612, 616.)

Government Liability:

"In California, all government tort liability must be based on statute." (*Becerra v. County of Santa Cruz* (1998) 68 Cal.App.4th 1450, 1457; Gov. Code § 815(a) [a public entity is not liable for any injury "[e]xcept as otherwise provided by statute"]; *Green Valley Landowners Association v. City of Vallejo* (2015) 241 Cal.App.4th 425, 441-442 [there is no common law tort liability for public entities—only statutory]; *Lundeen Coatings Corp. v. Department of Water & Power* (1991) 232 Cal.App.3d 816, 832 ["Tort claims may not be maintained against a public entity unless they are based on a statute or are required by the federal or state constitutions."]; *Duarte v. San Jose* (1980) 100 Cal.App.3d 648; *Ladd v. County of San Mateo* (1996), 12 Cal 4th 913.) In addition, no statute permits a finding of liability based on "equitable principles." (*Tuthill v City of San Buenaventura* (2014) 223 Cal.App.4th 1081, 1089.) Since all liability under the Government Claims Act is statutory, each tort cause of action must be specifically alleged and every element of the statutory basis of liability must be set forth. (*Zipper v. County of Santa Clara* (2005) 133 Cal.App.4th 1013, 1020; *Searcy v. Hemet Unified School Dist.* (1986) 177 Cal. App. 3d 792, 802.)

In the present case, Plaintiff asserts causes of action for dangerous condition of public property, breach of a mandatory duty, negligence of public employees, and declaratory relief, all based on the same facts: that Defendants failed to maintain, inspect, and safely manage Mt. Edna Road, a fire access route, which caused physical injury, property loss, and emergency response failure during multiple fire events.

Dangerous Condition of Public Property under Gov. Code § 830 and 835:

Gov. Code § 835 sets out the exclusive conditions under which a public entity may be held directly liable for injuries caused by a "dangerous condition" of public property. (*Zelig v. County of Los Angeles* (2002) 27 Cal.4th 1112, 1132.) A public entity may be held liable only if all of the following elements are satisfied: (1) the condition on its property must be one that creates a substantial risk of injury when the property or adjacent property is used with due care in a reasonably foreseeable manner; (2) the condition must have existed at the time of the injury; (3) the injury must have been "proximately caused" by the condition; (4) the condition must have created a "reasonably foreseeable" risk of the kind of injury suffered; and (5) either (i) the condition must have been created by a negligent or wrongful act or omission of an employee within the scope of his or her public employment, or (ii) the entity must have had "actual or constructive notice" of the condition sufficiently before the injury to have taken measures to protect against the risk involved. (Gov. Code §§ 830(a), 835; *City of Los Angeles v. Superior Court* (2021) 62 Cal.App.5th 129, 139.) Gov. Code § 830(c) states: "'Property of a public entity' and 'public property' mean real or personal property owned or controlled by the public entity, but do not include easements, encroachments and other property that are located on the property of the public entity but are not owned or controlled by the public entity."

Here, as indicated in the Court's ruling on County's previous demurrer, the undisputed evidence, of which the Court previously took judicial notice, shows that Mt. Edna Road is not a County Road. Additionally, there are no allegations in the SAC that County owns either Mt. Edna Road or Plaintiffs' property. Thus, potential liability under

Gov. Code §§ 830 and 835 rests on whether or not County “controls” the Property and/or Mt. Edna Road. (See, Gov. Code § 830(c).)

“Where the public entity’s relationship to the dangerous property is not clear, aid may be sought by inquiring whether the particular defendant had control, in the sense of power to prevent, remedy or guard against the dangerous condition...” (*Low v. City of Sacramento* (1970) 7 Cal.App.3d 826, 833–34; see also, *Searcy v. Hemet Unified School District* (1986) 177 Cal.App.3d 792, 798-799.) In *Searcy*, where a student was hit by a vehicle while walking home from school on a known short-cut that was not owned by the school district, the plaintiff alleged the district controlled the short-cut because it was responsible for students’ safety. The appellate court affirmed the trial court’s order sustaining the school district’s demurrer finding that there was no dangerous condition on property owned or controlled by the district, and there was no mandatory duty regarding the short-cut. The plaintiffs argued that the school district had the power to prevent or guard against the dangerous condition because it had the authority to install traffic control devices for student safety. (*Id.* at 799.) The court found this was not “the kind or degree of control necessary for section 835 liability.” (*Id.* at 799-800.) The court then affirmed the dismissal of the Complaint, finding that “[t]he complaint specifies no authority which empowers or requires School District to manage the property on an ongoing basis or to erect barriers or traffic controls that might control pedestrian and vehicular traffic over the property.” (*Id.* at 800.)

In the present case, in an attempt to show County controlled the Property and/or Mt. Edna Road, Plaintiff alleges that County maintained various types of government records regarding the Property and surrounding parcels, and responded to fires and emergencies using Mt. Edna Road, and conducted investigations, inspections, and code-enforcement activities in the Mt. Edna area. (SAC at ¶¶ 18-22, 26-31, 89-93.) While these allegations, accepted as true, show that County actively accessed and used Mt. Edna Road, they are insufficient to show that County “had control, in the sense of power to prevent, remedy or guard against” conditions on Mt. Edna Road. (See, *Low, supra*, 7 Cal.App.3d at 833–34.)

Thus, Plaintiff fails to allege facts showing any dangerous condition on property owned or controlled by County. Accordingly, Plaintiff fails to allege sufficient facts to state a cause of action for dangerous condition of public property, and the demurrer to this cause of action should be sustained. (Gov. Code §§ 830(a), 835; *Zelig, supra*, 27 Cal.4th at 1132; *City of Los Angeles, supra*, 62 Cal.App.5th at 139; *Low, supra*, 7 Cal.App.3d at 833–34.)

Mandatory Duty Under Gov. Code § 815.6:

Pursuant to Gov. Code § 815.6, “[w] here a public entity is under a mandatory duty imposed by an enactment that is designed to protect against the risk of a particular kind of injury, the public entity is liable for an injury of that kind proximately caused by its failure to discharge the duty unless the public entity establishes that it exercised reasonable diligence to discharge the duty.”

In the SAC, Plaintiff alleges that County was “subject to mandatory duties imposed by statute, regulation, ordinance, policy, public-safety requirements, emergency-response requirements, and other legal obligations intended to protect the public from injury,” and it failed to discharge these duties. (SAC at ¶¶ 173-175.) However, Plaintiff fails to identify any “statute, regulation, ordinance” that sets forth these purported duties. (See, SAC at ¶¶ 173-182.) As County’s liability can only be based on a statute, the

mandatory duty statute requires “an enactment” that creates the mandatory duty, and Plaintiff fails to identify any such enactment, Plaintiff fails to allege sufficient facts to state a cause of action for violation of a mandatory duty.

Negligence of Public Employees Under Gov. Code §§ 815.2 and 820:

Pursuant to Gov. Code § 820, “[e]xcept as otherwise provided by statute (including Section 820.2), a public employee is liable for injury caused by his act or omission to the same extent as a private person. Pursuant to Gov. Code 815.2:

(a) A public entity is liable for injury proximately caused by an act or omission of an employee of the public entity within the scope of his employment if the act or omission would, apart from this section, have given rise to a cause of action against that employee or his personal representative.

(b) Except as otherwise provided by statute, a public entity is not liable for an injury resulting from an act or omission of an employee of the public entity where the employee is immune from liability.

(*Ibid.*)

In the SAC, Plaintiff alleges that County’s various employees, agents, and representatives failed to exercise reasonable care in performing duties connected with Mt. Edna Road. (SAC at ¶¶ 184-193.) However, as discussed above, Plaintiff fails to allege sufficient facts showing that County owned or controlled Mt. Edna Road. Therefore, it also fails to sufficiently allege any duty by County or its employees/agents related to Mt. Edna Road. Accordingly, there is no basis for a negligence claim against any County employee pursuant to Gov. Code § 820, and no basis for County’s liability under Gov. Code § 815.2.

Declaratory Relief:

Finally, Plaintiff asserts a cause of action for declaratory relief without citing any statutory authority. As no statute provides the basis for this claim, it cannot be asserted against County.

Uncertainty:

While County specially demurs to the SAC on the ground of uncertainty under C.C.P. § 430.10(f), it fails to explain how any of the claims are uncertain such that it cannot reasonably determine what issues must be admitted or denied, or what claims are directed against them. (*Khoury, supra*, 14 Cal.App.4th 612, 616.)

General Demurrer by Defendant County of Riverside as to the Second Amended Complaint as a whole SUSTAINED, with leave to amend. Plaintiff to file an amended complaint within 30 days.

Plaintiff shall not be permitted any further opportunities to amend the complaint.

Special Demurrer by Defendant County of Riverside as to the Second Amended Complaint as a whole OVERRULED.

Case Management Conference and OSC continued to 11.09.26.